

Calendar Line 8

Case Name: *Cadriel v. Bustamante et al.*
Case No.: 24CV454288

This is an employment law action brought by plaintiff Ricky Cadriel against defendants Wolfspeed, Inc., and Edgar Bustamante. This case is related to another action in this court between the same parties: Case No. 24CV430054. Counsel for Plaintiff (“Counsel”) has filed a motion to be relieved as counsel. The motion is unopposed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).”⁵ (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:
(A) The service address is the current residence or business address of the client;
or
(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

⁵ Code of Civil Procedure section 284 provides, “The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other.”

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

II. Discussion

Counsel attests there has been a breakdown in the attorney-client relationship and inability to communicate with the client rendering it unreasonably difficult to carry the representation of Plaintiff. (Counsel's Declaration, MC-052, ¶ 2.) Counsel further attests they have served Plaintiff by mail with the motion papers at an address confirmed as current within the past 30 days. (*Id.* at ¶ 3.) Counsel has provided the motion and supporting declaration on the appropriate Judicial Council forms (MC-051, MC-052), but court records indicate that Counsel has not provided a proposed order on the appropriate form (MC-053).

The Court finds that Counsel has served Defendants by mail, submitted a declaration establishing that the requirements of Rule 3.1362 have been satisfied, shown sufficient reason why the motion to be relieved as counsel should be granted, and shown why Counsel brought the instant motion under Code of Civil Procedure section 284(2) instead of filing a consent under section 284(1).

Accordingly, the motion is GRANTED on the condition that Counsel provides a proposed order on the appropriate form. The Court sets a Case Management Conference for July 1, 2026 at 2:30 p.m. in Department 19. Plaintiff's failure to retain new counsel prior to that date may result in the dismissal of the action.

III. Conclusion

The motion to be relieved as counsel is GRANTED on the condition that Plaintiff's Counsel provides a proposed order on Judicial Council form MC-053 within 5 court days.

Plaintiff's new counsel shall appear at the Case Management Conference scheduled for July 1, 2026 at 2:30 p.m. in Department 19. Plaintiff's failure to retain new counsel prior to that date may result in the dismissal of the action.

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Case Name: *Turiello v. Piping Systems Engineering Inc.*
Case No.: 25CV464775

Cross-defendant Piping Systems Engineering, Inc. (“PSE”) demurs to the Third, Sixth, and Seventh causes of action of the Cross-Complaint filed by defendant and cross-complainant Hydraulics International, Inc. (“HII”). As discussed below, the demurrer to the Third, Sixth, and Seventh causes of action is SUSTAINED with 20 days’ leave to amend. PSE’s request that the demurrer be sustained without leave to amend is DENIED.

I. Background

This action arises from alleged defects in a system called Firefighter Air Replenishment Systems (“FARS”) developed by Rescue Air, Inc. (“Rescue Air”), a company founded by Turiello in 1993. Rescue Air contracted with defendants Piping Systems Engineering, Inc. (“PSE”) and Hydraulics International, Inc. (“HII”) (collectively, “Defendants”) for work relating to FARS. According to the allegations of the operative First Amended Complaint (“FAC”), both defendants had legal duties to ensure that their designs and products would result in functional systems in compliance with applicable codes and project specifications provided by Rescue Air.

PSE and HII each filed cross-complaints. As relevant here, HII’s Cross-Complaint, filed October 31, 2025, asserts nine causes of action. PSE demurs only to the three causes of action asserted against it based on warranty and strict products liability: the Third (breach of implied warranty of merchantability), Sixth (strict products liability – design defect), and Seventh (strict products liability – failure to warn). PSE does not demur to HII’s indemnity, contribution, negligence, or declaratory relief causes of action.

The parties satisfied the meet-and-confer requirement of Code of Civil Procedure section 430.41 through a telephonic conference on December 2, 2025. (Declaration of Katharine McCallum (“McCallum Decl.”), ¶¶ 2–4.)

II. Request for Judicial Notice